

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	DEMURRER ON 4TH AMENDED CROSS-COMPLAINT

Tentative Ruling:

GRANT all Requests for Judicial Notice.

OVERRULE the demurrer to the first and fourth causes of action. Res Judicata is inapplicable. The allegations of agency are sufficient to establish a duty to FNS. FNS's allegations that it suffered substantial economic damage are sufficient at this pleadings stage. The negligence claims are not barred by the economic loss rule.

SUSTAIN the demurrer to second and third causes of action, with 30 days' leave to amend. For Breach of Fiduciary Duty, FNS cites to no authority for the proposition that an insurance broker is a fiduciary of the insured. For Negligent Misrepresentation, FNS claims that Marsh represented that it would administer RIGHTSUM in a competent and professional manner. These statements reflect opinions regarding future events rather than existing facts, and as such are not actionable under a negligence theory. Moreover, in pleading fraud against a corporate entity, the Plaintiff must allege the name of the corporate agent who spoke and his or her authority to speak on behalf of the corporation. Here, FNS fails to name any agent, and hence this cause of action lacks the required specificity.

SUSTAIN the demurrer to the fifth and sixth causes of action, without leave to amend. Cross-Complainant has not provided a single document showing that Marsh is a party to any contract, including the Renewed WC Program Agreement, nor does it establish that other documents or representations were intended to function as contracts. FNS has had multiple opportunities to plead an actual enforceable contract but has failed to do so. Because FNS has not established the existence of a contract between itself and Marsh, it cannot establish a breach of the covenant of good faith and fair dealing that impliedly runs with the contract.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR SUMMARY JUDGMENT ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

Cross-Complainant filed a Fourth Amended Cross-Complaint (4thACC) on July 14, 2026. The 4thACC is now the operative Complaint in this action, superseding the Third Amended Cross-Complaint (TACC). The Motion for Summary Judgment addresses the